

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.**

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**2. M-CV-0085478 LININGER, THOMAS v. MALEK, MANASA**

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Cross-Defendant Manassa Malek's Motion to Determine Reasonable Medical Charges and Release Interpleaded Funds

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This timeline is extended depending upon the method of service. (*See generally id.*) There is no proof of service in the file demonstrating cross-complainant Nadine Yassa has been served with the motion. Accordingly, cross-defendant's motion is denied without prejudice.

The court also observes there are no case management conference or trial date set. The court on its own motion sets a case management conference for July 27, 2026, at 3:00 p.m. in Department 40. The court directs the clerk of court to provide notice to cross-complainant Nadine Yassa and cross-defendant Manassa Malek of the case management conference.

**3. M-CV-0094796 CAPITAL ONE, N.A. v. JORDAN, MICHAEL**

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Defendant's Motion to Compel Arbitration and Stay Proceedings

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the